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Proposal for a Regulation of the European Parliament and of The Council on the WELFARE OF DOGS AND CATS and THEIR TRACEABILITY

FEEDBACKS PROVIDED BY

European Pet Organization (EPO), the Netherlands

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Have your Say. Published initiative. Welfare and traceability of dogs and cats (new rules). European Commission. https://ec.europa.eu/info/law/better-regulation/have-your-say/initiatives/14061-Welfare-and-traceability-of-dogs-and-cats-new-rules-_en

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PROVIDED FEEDBACK

INTRODUCTORY WORDS

The European Pet Organization (EPO) would like to thank the European Commission for affording stakeholders the opportunity to provide feedback on the new rules covering the welfare and traceability of dogs and cats presented this past December.

EPO as the voice of the European pet trade associations would like to acknowledge the importance of such a proposal, for both the welfare and traceability of dogs and cats.

As a sector, EPO can only support its content which reflects most of EPO and its members priorities and activities as set within its own organization charter:
setting as its core the welfare and health of companion animals, empowering the essential role of responsible, educated, and trained pet industry operators (i.e. retailers) while transferring pet ownership, but also while emphasizing on the importance of responsible pet ownership.
All of these are at the base for ensuring that pet retailers are the right industry operators to sell dogs and cats, while accompanying the potential dogs and cats 'owner into its journey of pet owner. EPO would like to thank the European Commission for this special acknowledgement made into this proposal.

EPO would also like to thank the European Commission for introducing within this proposal a response to stop illegal trade of dogs and cats with a mandatory chipping, registration, and identifications of the traded and kept species.
System which is essential not only to safeguard the welfare and health of the traded and kept species, but also empowering the important role of the legitimate and responsible industry operators.

Considering these, EPO and its members will be pleased to assist the EU authorities while refining the proposal, but more importantly contribute by sharing its sector's experience and experience to the development of the delegated and implemented acts scheduled for these coming five years.

Finally, this proposal also opens a more general question about the competence on Animal Welfare, which has been until now a Member State one.

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GENERAL COMMENTS

Animal welfare and more particularly the health and welfare of dogs and cats have always been at the heart of EPO and its members' activities as promoted within the EPO charter.

More particularly today within this opened consultation period, EPO as the voice of the European pet trade associations would like to comment on this draft delegated regulation presenting new rules for the welfare and traceability of dogs and cats at EU level.

Animal Welfare and Traceability

Thanks to the two exercises run by the EU authorities with:
- the EU Coordinated Action on the illegal trade of cats and dogs carried out in 2022 and 2023, and
- the EU consultation in the scope of the study supporting the impact assessment accompanying the revision of the EU legislations related to Animal Welfare- respectively Directives 98/58/EC, 1999/74/EC, 2007/43/EC, 2008/120/EC and 2008/119/EC run these past years

We strongly believe at EPO that the proposal on new rules for the welfare and traceability of dogs and cats presents a solid European framework to ensure an EU wide harmonization of high standards tackling dogs and cats breeding, trading and keeping.

For EPO, the introduction of a mandatory chipping, registration and identification is key to curb the illegal trade of dogs and cats, and the absence of any welfare and health considerations this illegal trade presents.

The proposal and its strong echo within the EPO Charter

EPO would like to thank the European Commission for presenting new rules on the welfare and traceability of dogs and cats that have such a strong echo to EPO's own charter.

As you know, EPO members have adopted a charter that sets at its core several of the important elements of the EU proposal on new rules for the welfare and traceability of dogs and cats.

- Animal Welfare:
"EPO members promote best practices in the keeping of animals by observing the five welfare needs: diet, accommodation; wellbeing; sociability; behaviour";

- Responsible pet industry members along with the **care and transfer of ownership**:
"EPO members believe that pet-related businesses are responsible for the professional care and transfer of ownership of pets, and should promote best practice amongst the pet industry";

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- Using the latest scientific evidences to provide advices:
"EPO members Use the latest scientific and empirical knowledge in providing advice about the keeping of animals";

- Trained and educated pet industry members:
"EPO members Believe that all those professionally responsible for handling animals should be appropriately trained and have a comprehensive understanding of the animals' welfare needs and the respective legal obligations";

- Responsible pet ownership:
"EPO members promote responsible pet ownership and recognise the social and health benefits of keeping pets";

- Reject all illegal practices:
"*EPO members believe that all those involved in the pet trade should abide by all current legislation regarding the trade, ownership and keeping of animals, and reject all illegal practices";*

A proposal aiming to stop the illegal trade and its devastating consequences on the welfare and health of dogs and cats, but also devastating consequences on the legitimate trade.

EPO would like to acknowledge the European Commission for its proposal setting at its core not only the welfare and traceability of dogs and cats by creating a legal framework aiming stop the illegal trade and dogs and cats within the EU, putting at stake the welfare and traceability of the illegally traded species.

The proposal provides not only a comprehensive approach into tackling illegal trade but most importantly provides an inclusive approach by ensuring that all concerned stakeholders (including all representatives of the private sector) to consumers are being involved. This inclusive approach is considered as the KEY element into ensuring its successful implementation at all levels and by all.

In this respect, EPO would like to assist the European Commission while refining this proposal but more importantly contribute by sharing its sector's experience and experience to the development of the delegated and implemented acts scheduled for these coming five years.
This to ensure a WIN WIN approach.

Empowering the important role of retailers and of responsible pet ownership

EPO would like to thank the European Commission for acknowledging into this proposal the important role of retailers by letting responsible ones to continue selling dogs and cats.

It is also very important to stress that these retailers have the right knowledge and training for the transfer of ownership- and to ensure that the right individual acquire the most proper companion animals (including dogs and cats) based upon its dedication, knowledge and lifestyle while also accompanying then the pet owner

with the most up to date advice to keep his dogs and cats into the best conditions through its lifespan.
Promoting responsible pet ownership is indeed key.

A specific remark about the conditions under which dogs and cats should be kept. More particularly, as presented in its Annex I - Requirements applicable to establishments, in article 2 dedicated to **housing,** and the suggested **temperatures (2.1):**
"*Operators shall ensure that temperature is maintained within a range of:*
(a) 10 to 26°C in the indoor areas where adult dogs are kept;
(b) 15 to 26°C in the indoor areas where adult cats are kept;
(c) 22 to 28°C in whelping areas for the first 10 days of puppies' lives;
(d) 18 to 27°C in kittening areas for the first 21 days of kittens' lives.
Temperature ranges shall be adapted accordingly for animals of brachycephalic breed/type and for animals with extreme coat types (hairless or heavy-coated breeds)."

As a sector, we wonder the basis on which the temperatures range for housing of dogs and cats have been developed. In the EFSA published opinion "*Scientific and technical assistance on welfare aspects related to housing and health of cats and dogs in commercial breeding establishments*", it is stated that "*to prevent thermal stress in dogs, insufficient evidence could be found to support the temperature range of 10-26°C, as high variation is observed across different breeds and types*."
It is unclear for the maximum temperature proposal to what extent it is desirable, but also to what extent it is necessary for the welfare of the animals, although exceptions can be made in the regulations for specific breeds. There is a difference between an Alaskan malamute and a Mexican hairless dog.
As a sector we do want to downplay the welfare aspects of an ambient temperature that is too high in any way. Regulations are certainly important, but in our views, they should be better substantiated and also clearly more breed specific.
Furthermore, we do wonder how in practice the maximum temperatures could applied in the different member states as northern countries do not experience the same temperatures than southern countries and vice versa. The option to equip all accommodations with air conditioning is very expensive and consumes a lot of energy.

Chipping, Registration and Identification

EPO would also like to thank the European Commission for introducing a harmonized identification and registration of dogs and cats being traded within the EU. EPO considers this step as essential to ensure an efficient traceability system of dogs and cats being bred, traded and kept within this EU.

EPO would like to highlight the importance of such a system that should be at the core to not only protect consumers (i.e. pet owners) acquiring companion animals via online listing but also protecting the dogs and cats being listed. This is a major step forward to tackle online advertisement within the EU.

Another step that could be considered as already done in some Member States, is requiring the platform to verify all advertisements before it gets published.

Nevertheless, based upon our sector experience with TRACES, a functioning and practical harmonized and centralized database will be key to ensure that this chipping, registration and identification process is done efficiently within all EU Member States.

As a sector representative, EPO will be glad to contribute to the discussion by sharing its expertise and experience while this system is being developed.

Animal Welfare: A Member State Competence versus an EU Competence

Animal welfare has been until now not an EU competence as stressed regularly by the EU authorities but a competence under the responsibility of the EU Member States.

As stated by the European Commission "when the Lisbon Treaty came into force in 2009 it amended the 'Treaty on the Functioning of the European Union' (TFEU) and introduced the recognition that animals are sentient beings.
Article 13 of Title II states that:
"In *formulating and implementing the Union's agriculture, fisheries, transport, internal market, research and technological development and space policies, the Union and the Member States shall, since animals are sentient beings, pay full regard to the welfare requirements of animals, while respecting the legislative or administrative provisions and customs of the EU countries relating in particular to religious rites, cultural traditions and regional heritage."*
National governments may adopt more stringent rules provided they are compatible with the provisions of the Treaty but Community legislation concerning the welfare conditions of farm animals lays down minimum standards".

As any sector dealing with live animals and setting at its core animal welfare, EPO reckons that this treaty has enabled the EU authorities to study how best to better tackle animal welfare by assessing, reviewing and updating existing rules through its fitness check- with the first outcomes presented this December: with the new rules on the welfare and traceability of dogs and cats, and the updated rules on live animal transport.

Considering this first outcomes, and the ongoing work run by the European Commission to review and tackle best Animal Welfare at EU level, EPO and its members wonder if the EU aims to regain the competence on Animal Welfare that has been until now under the Member States responsibility.

We are indeed very much aware that Animal Welfare has already been integrated as an EU issue of interest in the Official Control Regulation (OCR) – Reg (EU) 2017/625 – considering that animal welfare has been integrated as one of the components that Border Control Post and inspectors must check, and this same regulation has enabled the EU authorities to run the fitness check on Animal Welfare.

Should we thus foresee that the EU OCR that already oversees the EU Animal Health Law – Reg. (EU) 2016/429 - and the EU Plant Health Law – Reg. (EU) 2016/2031, could probably oversees an EU Animal Welfare Law?

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CONCLUDING WORDS

As stated within our feedback submitted today, the European Pet Organization (EPO)- as the voice of the European pet trade associations- welcomes the new rules on the welfare and traceability of cats and dogs.
A special thanks to the EU authorities for empowering the important role of retailers as responsible industry operators – with a proposal echoing strongly to EPO own charter.

As a sector, we strongly believe that all stakeholders, including EPO, should assist the European Commission while refining this proposal but most importantly contribute by sharing its sector's experience and experience to the development of the delegated and implemented acts scheduled for these coming five years.

It will be important that all stakeholders contribute to their development to ensure their proper and realistic implementation while avoiding any unintentional consequences such as a raise of dogs and cats' abandon.

As a sector, we can think very positively of the Animal Health Advisory Committee the European Commission has used and continue to use as a platform to discuss and exchange on the delegated and implemented acts of the EU Animal Health Law.
We do hope that such format could be used to ensure that all stakeholders can contribute to this five years exercise.

Finally, we also take the opportunity of this consultation on the new rules for the welfare and traceability of dogs and cats, to invite the European Commission to consider reviewing the scope of the EU Animal Welfare Platform and as a consequence of its members.
With these new rules, in addition to the new ones set specifically for the transport of dogs and cats in the proposal for updated rules on live animal transport, we do see that the welfare of dogs and cats will be a top priority for the EU in the coming years – in particular with the delegated and implemented acts to be developed but also to ensure the proper implementation of the new rules. An added priority to the initial scope of the platform dedicated to the Farm to Fork Strategy.
In light of this situation, EPO strongly believes that the pet sector (with its private sector representatives) should join the activities of the platform and become a member – if the platform's scope is being updated.

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Annex I Additional information about EPO

Created in Vienna in April 1990, the European Pet Organization (EPO) is a coalition of parties interested in protecting and promoting the interests of the European pet industry.

EPO represents twelve (12) trade associations in ten (10) countries representing thousands of enterprises many of which are SME's or micro businesses.
Its member organizations include for each country:

- **Austria: WKO** - Wirtschaftskammern Österreichs
- **France: JAF** - Jardineries et Animaleries de France
- **France: PRODAF** - Syndicat professionnel des métiers et services de l'animal familier
- **Germany: IVH** - Industrieverband Heimtierbedarf (IVH) e.V.
- **Germany: ZZF** - Zentralverband Zoologischer Fachbetriebe Deutschlands e.V.
- **Italy: AIPA** - Associazione Italiana Pesci ed Acquari
- **Norway: NZB** - Norges Zoohandleres Bransjeforening
- **Spain: AEDPAC** - Asociación Española de la Industria y el Comercio del Sector Animal de la Compañía
- **Sweden: ZOORF** - Zoobranschens Riksförbund
- **Switzerland: VZFS** - Verband Zoologischer Fachgeschäfte der Schweiz
- **The Netherlands: DIBEVO**
- **United Kingdom: OATA** - Ornamental Aquatic Trade Association

As per its adopted charter (May 2018), EPO members:

• "Promote responsible pet ownership and recognise the social and health benefits of keeping pets;
• Promote best practices in the keeping of animals by observing the five welfare needs; diet, accommodation; wellbeing; sociability; behaviour;
• Believe that keeping pets promotes an understanding and appreciation of nature, biodiversity and conservation;
• Believe that pet-related businesses are responsible for the professional care and transfer of ownership of pets, and should promote best practice amongst the pet industry;
• Believe that all those involved in the pet trade should abide by all current legislation regarding the trade, ownership and keeping of animals, and reject all illegal practices;
• Use the latest scientific and empirical knowledge in providing advice about the keeping of animals;
• Do not support the release of pet animals into the wild;
• Believe that all those professionally responsible for handling animals should be appropriately trained and have a comprehensive understanding of the animals' welfare needs and the respective legal obligations;
• Ensure dissemination of relevant information regarding the trading and keeping of animals within the sector; and,
• Strive for good collaboration and exchange of information amongst its members, within the pet sector, and with government."

Further information is available at www.europets.org